



SPONSOR: Rep. Yearick & Rep. Shupe & Sen. Wilson
Reps. Gray, Hilovsky, Bolden; Sen. Lawson

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 108

AN ACT TO AMEND TITLE 30 OF THE DELAWARE CODE RELATING TO PERSONAL INCOME TAX
MODIFICATIONS SUBTRACTED FROM FEDERAL ADJUSTED GROSS INCOME.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 1106, Title 30 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 1106. Modifications [For application of this section, see 83 Del. Laws, c. 338, §?2].

4 (b) *Subtractions.* — There shall be subtracted from federal adjusted gross income:

5 (3) a. For taxable years beginning before January 1, 2022:

6 1. Amounts received, not to exceed \$2,000, by persons under age 60 as pensions from employers, the
7 United States, this State, or any subdivision of this State; or

8 2. Amounts received, not to exceed \$12,500, by persons age 60 or older as pensions from employers,
9 the United States, this State, or any subdivision of this State, or as eligible retirement income.

10 b. For taxable years beginning on or after January 1, 2022 and before January 1, 2025:

11 1. For persons under age 60, the greater of:

12 A. Amounts received, not to exceed \$2,000, as pensions from employers, the United States, this
13 State, or any subdivision of this State; or

14 B. Amounts received, not to exceed \$12,500, as a United States military pension.

15 2. For persons age 60 or older, amounts received, not to exceed \$12,500, as pensions from
16 employers, the United States, this State, or any subdivision of this State, or as eligible retirement income.

17 c. For taxable years beginning on or after January 1, 2025:

18 1. For persons under age 60, the greater of:

19 A. Amounts received, not to exceed \$2,000, as pensions from employers, the United
20 States, this State, or any subdivision of this State; or

21 B. Amounts received, not to exceed \$25,000 as a United States military pension.

22 2. For persons age 60 or older, amounts received, not to exceed \$25,000, as pensions from
23 employers, the United States, this State, or any subdivision of this State, or as eligible retirement income.
24 ~~e.~~ d. For the purposes of this paragraph (b)(3):

SYNOPSIS

This bill increases the personal income tax pension exclusion from \$12,500 to \$25,000.